

26STCV07562 26STCV07562

County: los-angeles

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Case Number: 26STCV07562 Hearing Date: August 20, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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RICHARD PALMER,

Plaintiff(s),

vs.

RPM

MOTORCARS, LLC, et al.

Defendant(s).

Case No.:

26STCV07562

Hearing Date:

August 20, 2026

[TENTATIVE]

ORDER RE: APPLICATIONS FOR WRIT OF ATTACHMENT

Richard Palmer ("Plaintiff") seeks writs of attachment against defendants RPM Motorcars, Inc. ("RPM") and Raymond E. Penman III ("Penman")(collectively, "Defendants").

The two unopposed applications are granted.

I.

Background

1. Factual Background

RPM is a car dealership and auto repair shop in Sherman Oaks, California. (Palmer Decl., ¶ 3.) Penman purports to be an owner of RPM. (Palmer Decl., ¶ 3.)

In early 2025, Plaintiff delivered his 1965 Ford Mustang, VIN 5R08T247326 ("Mustang") to Defendants under an oral agreement ("Mustang Agreement") that: (1) Defendants would market and sell the Mustang on behalf of Plaintiff; (2) Defendants would pay Plaintiff \$25,000 upon sale; and (3) Defendants could retain any proceeds above \$25,000. (Palmer Decl., ¶ 4.)

On or about July 29, 2025, Penman informed Plaintiff the Mustang had been sold pending Plaintiff signing over title to Defendants so Defendants could sign title over to the buyer. (Palmer Decl., ¶ 5.) Plaintiff signed and delivered title to Defendants. (Palmer Decl., ¶ 5.) Defendants have not paid any portion of the \$25,000 owed, and do not deny owing the amount. (Palmer Decl., ¶ 5.) Defendants offered to apply the amount to restoring Plaintiff's 1967 Chevrolet Corvette, VIN 194677S103517, but did not. (Palmer Decl., ¶ 5.)

In or about December 2025, Plaintiff delivered his 2013 Ferrari 458 Spider, VIN ZFF68NHA9D0190496 ("Ferrari") to Defendants under an oral agreement ("Ferrari Agreement") that: (1) Defendants would market and sell the Ferrari on behalf of Plaintiff; (2) Defendants would pay Plaintiff \$230,000 upon sale; and (3) Defendants could retain any proceeds above \$230,000. (Palmer Decl., ¶ 6.)

On December 16, 2025, Penman informed Plaintiff the Ferrari had been sold pending Plaintiff signing over title to Defendants so Defendants could sign title over to the buyer. (Palmer Decl., ¶ 7.) Plaintiff signed and delivered title to Defendants on January 2, 2026. (Palmer Decl., ¶ 7.) Penman also directed Plaintiff to pay off the loan on the Ferrari, which Plaintiff did on December 18, 2025. (Palmer Decl., ¶ 7.) On February 6, 2026, RPM issued Plaintiff two checks totaling \$230,000, which Penman personally delivered. (Palmer Decl., ¶ 8.) These checks were returned for insufficient funds. (Palmer Decl., ¶ 8, Exs. A-B.)

2. Procedural History

On April 17, 2026, Plaintiff filed this action against Defendants. Proofs of service filed March 23, 2026 show Plaintiff served the summons and complaint on Penman by personal service and on RPM by substituted service, both on March 11, 2026. Defendants filed their answer on April 17, 2026.

On June 23, 2026, Plaintiff filed the instant applications for writ of attachment against Defendants. To date, no opposition by either defendant has been filed. Any opposition was due no later than August 13, 2026. (CCP § 484.060(a).)

II.

Applicable Law

“Upon the filing of the complaint or at any time thereafter, the plaintiff may apply pursuant to this article for a right to attach order and a writ of attachment by filing an application for the order and writ with the court in which the action is brought.” (CCP § 484.010.)

The application shall be executed under oath and must include: (1) a statement showing that the attachment is sought to secure the recovery on a claim upon which an attachment may be issued; (2) a statement of the amount to be secured by the attachment; (3) a statement that the attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based; (4) a statement that the applicant has no information or belief that the claim is discharged or that

the prosecution of the action is stayed in a proceeding under the Bankruptcy Act (11 U.S.C. section 101 et seq.); and (5) a description of the property to be attached under the writ of attachment and a statement that the plaintiff is informed and believes that such property is subject to attachment. (CCP § 484.020.)

The application for a writ of attachment must be supported “by an affidavit showing that the plaintiff on the facts presented would be entitled to a judgment on the claim upon which the attachment is based.” (CCP § 484.030.)

The court shall consider the showing made by the parties, as well as the pleadings and other papers in the record. (CCP § 484.090(a), (d).) The Court shall issue a right to attach order if it finds all of the following:

“(1) The claim upon which the attachment is based is one upon which an attachment may be issued.

(2) The plaintiff has established the probable validity of the claim upon which the attachment is based.

(3) The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based.

(4) The amount to be secured by the attachment is greater than zero.”

(CCP § 484.090(a)(1-4).)

At the times prescribed by CCP section 1005, subdivision (b), the defendant must be served with a copy of the summons and complaint, notice of application and hearing, and a copy of the application and supporting affidavits. (CCP § 484.040.)

“The Attachment Law statutes are subject to strict construction....” (Epstein v. Abrams (1997) 57 Cal.App.4th 1159, 1168.)

III.

Analysis

1. Claim on Which Attachment Can Be Based

“[A]n attachment may be issued only in an action on a claim or claims for money, each of which is based upon a contract, express or implied, where the total amount of the claim or claims is a fixed or readily ascertainable amount not less than five hundred dollars (\$500) exclusive of costs, interest, and attorney's fees.” (CCP § 483.010(a).) “An attachment may not be issued on a claim which is secured by any interest in real property arising from agreement” (CCP § 483.010(b).)

Here, Plaintiff's claims against Defendants are premised on his causes of action for breach of contract and financial elder abuse. (Mem. at 5-6.) Plaintiff may seek attachment based on these claims.

2. Contract Based on a Commercial Claim

If the action is against a defendant who is a natural person, an attachment may be issued only on a commercial claim which arises out of the defendant's conduct of a trade, business, or profession. (CCP §483.010(c).) Consumer transactions cannot form a basis for attachment. (CCP §483.010(c); Kadison, Pfaelzer, Woodard, Quinn & Rossi v. Wilson (“Kadison”) (1987) 197 Cal.App.3d 1, 4 [action involving trust property was a commercial, not a consumer, transaction].)

As to Penman, he purports to own RPM. (Palmer Decl., ¶ 3.) RPM is a car dealership and auto repair shop. (Palmer Decl., ¶ 3.) The Mustang Agreement and Ferrari Agreement (collectively, “Agreements”) in question cover the marketing and sale of the Mustang and the Ferrari. (Palmer Decl., ¶¶ 4, 6.)

Accordingly, the Court finds that, as to Penman, the claims are commercial in nature, not consumer.

3. Fixed or Readily Ascertainable Amount

A claim is “readily ascertainable” where the damages may be readily ascertained by reference to the contract and the basis of the calculation appears to be reasonable and definite. (CIT Group/Equipment Financing, Inc. v. Super DVD, Inc. (2004) 115 Cal.App.4th 537, 540-41.) The fact that the damages are unliquidated is not determinative. (Ibid.) But the contract must furnish a standard by which the amount may be ascertained and there must be a basis by which the damages can be determined by proof. (Ibid.)

Here, Plaintiff’s evidence shows that Plaintiff and Defendants executed the Agreements, whereunder Defendants agreed to market and sell the Mustang and the Ferrari and pay Plaintiff \$25,000 and \$230,000, respectively, in exchange for all sale proceeds beyond those amounts. (Palmer Decl., ¶¶ 4, 6.) Defendants represented that the Mustang and Ferrari were sold, and Plaintiff delivered title. (Palmer Decl., ¶¶ 5, 7.) Even so, Defendants never paid Plaintiff. (Palmer Decl., ¶¶ 5, 7-8.) Defendants did provide checks for the \$230,000 owed under the Ferrari Agreement, but those checks were returned for insufficient funds. (Palmer Decl., ¶ 8, Exs. A-B.)

Plaintiff provides a separate calculation of interest showing Defendants now owe \$18,284.93 in interest for a total owed of \$273,284.93. (Martin Decl., ¶ 12.) This amount is readily ascertainable.

Plaintiff also estimates he will incur \$94,277.50. Plaintiff provides a detailed breakdown of this calculation. (Martin Decl., ¶¶ 6-11.) However, LASC Local Rule 3.214 sets the amount of reasonable attorney fees recovered under a contract provision for recovery of such fees.^[1]

Under this rule, the reasonable allowable fees in a contested contract action for \$273,284.93 is \$8,735.70. The amount of the fees is reduced to \$8,735.70.

Accordingly, the total readily ascertainable amount is \$282,020.63.

4. Probable Validity of Plaintiff’s

Claims

"A claim has 'probable validity'

where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim." (CCP § 481.190.) "If the defendant opposes the application, 'the court must then consider the relative merits of the positions of the respective parties and make a determination of the probable outcome of the litigation.' [Citations.]" (Pech v. Morgan (2021) 61 Cal.App.5th 841, 855.)

Here, the application is based on

claims for breach of contract. To establish a claim for breach of contract, a plaintiff must prove: (1) existence of a contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach of the contract; and (4) damages incurred by plaintiff as a result of the breach. (Durell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1367.)

As discussed, Plaintiff's

evidence shows that Plaintiff and Defendants executed the Agreements, whereunder Defendants agreed to market and sell the Mustang and the Ferrari and pay Plaintiff \$25,000 and \$230,000, respectively, in exchange for all sale proceeds beyond those amounts. (Palmer Decl., ¶¶ 4, 6.) Defendants represented that the Mustang and Ferrari were sold, and Plaintiff delivered title. (Palmer Decl., ¶¶ 5, 7.) Even so, Defendants never paid Plaintiff. (Palmer Decl., ¶¶ 5, 7-8.) Defendants did provide checks for the \$230,000 owed under the Ferrari Agreement, but those checks were returned for insufficient funds. (Palmer Decl., ¶ 8, Exs. A-B.)

Plaintiff has made a prima

facie showing for breach of contract. Defendants do not oppose the applications. Accordingly, Plaintiff has shown the probable validity of his breach of contract claim.

5. Purpose of Attachment

The other required finding under

CCP section 484.090 is that the "attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based." (CCP § 484.090(a)(3).)

Plaintiff declares that

“[a]ttachment is not sought for a purpose other than the recovery on a claim upon which the attachment is based.” (App. ¶ 4.) Attachment is sought for proper purpose.

6. Bankruptcy

CCP section 484.020(d) requires a

“statement that the applicant has no information or belief that the claim is discharged in a proceeding under Title 11 of the United States Code (Bankruptcy) or that the prosecution of the action is stayed in a proceeding under Title 11 of the United States Code (Bankruptcy).”

Plaintiff provides this

statement. (App. ¶ 5.) This requirement has been satisfied.

7. Property Subject to Attachment

CCP section 487.010(a) states

that, where the defendant is a corporation, all corporate property for which a method of levy is provided in CCP section 488.300 et seq. is subject to attachment.

Where the defendant is a natural

person, the property to which attachment can apply is limited per CCP section 487.010(c).

Plaintiff seeks property

described as follows:

“The following property of

Defendant RAYMOND E. PENMAN III is subject to attachment:

(1) Interests in real property

except leasehold estates with unexpired terms of less than one year (CCP § 488.315);

(2) Accounts receivable and

general intangibles (CCP § 488.470);

(3) Chattel paper (CCP §§ 488.435 and 700.100);

(4) Equipment (CCP §§ 488.475 and 488.385);

(5) Farm products (CCP §§ 488.395 and 488.405);

(6) Inventory (CCP §§ 488.395, 488.364 and 488.405);

(7) Equipment (CCP §§ 488.375, 488.385 and 488.424);

(8) Final money judgments (CCP §§ 488.480);

(9) Money and deposit accounts (CCP §§ 488.455, 488.460 and 488.465);

(10) Negotiable documents of title (CCP § 488.445);

(11) Instruments (CCP § 488.440);

(12) Securities (CCP § 488.450);
and

(13) Minerals (CCP §§ 488.325 and 700.020). " (Apps. ¶ 9.)

This description is sufficient.

8. Claims of Exemption

No claims of exemption are sought.

9. Undertaking

CCP section 489.210 requires the plaintiff to file an undertaking before issuance of a writ of attachment. CCP section 489.220 provides, with exceptions, for an undertaking in the amount of \$10,000. Defendants do not object to the amount of the undertaking. Accordingly, the Court will order an undertaking in the amount of \$10,000.

IV.

Conclusion

Plaintiff's two applications for attachment against Defendants are GRANTED in the reduced amount of \$282,020.63. The undertaking will be \$10,000. See CCP §489.220. No writ shall issue against any defendant until Plaintiff posts the \$10,000 undertaking for that defendant.

Date: August 20, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

The Court has the power to determine a different amount of reasonable fees; however, there is no reason, based on the evidence or argument before the court on this application, for the Court in this case to depart from the basic rule.